

Stereo. HCJDA 38
Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT

Writ Petition No.30883 of 2020

Liquidation Committee Board of Revenue

Versus

Muhammad Tayyab etc.

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JUDGMENT

Date of Hearing:	07.04.2026.
Petitioner by:-	Mr. Nadeem-ud-Din Malik, Advocate.
Respondent No.1 by:-	Mr. Ejaz Ahmad Khan, Advocate.

CH. MUHAMMAD IQBAL, J:- Through this

Writ Petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, the petitioner has challenged the legality of judgment dated 12.06.2020, passed by the learned Cooperative Judge who dismissed the Co-operative Petition No.24163/2019 filed by the petitioner.

2. Brief facts of the case are that the Pasban Cooperative Finance Corporation (PCFC) purchased land measuring 57-Kanals 05-Marlas through registered sale deed No.11603 dated 09.08.1988 situated in Mouza Kamahan, Tehsil & District Lahore and mutation No.2536 was incorporated in the revenue record. Respondent No.1 through sale deed No.17290 dated 12.12.1982 claims himself as owner of the suit property measuring 57-Kanals 05-Marlas. The petitioner issued a letter No.PCBL-P-5241 dated 25.05.2018 to the Addl: District Collector Lahore to hold inquiry with regard to genuineness of the alleged sale deed No.17290 in favour of

respondent and in response to the said letter Record Keeper, Sub-Registrar, Data Gunj Bakhsh Town reported that sale deed No.17290, Bahi No.1, Volume No.1319 dated 12.12.1982 pertain to a D-Book record and a certified copy of the said sale deed was shown to be issued on 19.12.2017 which is a bogus copy.

On 13.12.2018 respondent No.1 filed a suit for declaration with permanent and mandatory injunction and consequential relief against the petitioner seeking therein cancellation of the sale deed bearing No.11603, Book No.1, Volume No.669 dated 9.8.1988 and mutation No.2536 dated 22.08.1988 in favour of defunct corporation (PCFC) which suit was decreed vide judgment & decree dated 05.03.2019 by the learned Civil Judge, Lahore who cancelled the said sale deed of defunct Corporation [PCFC]. Petitioner being legal successor body of the said defunct corporation filed Co-operative Petition No.24163/2019 which was dismissed by the learned Cooperative Judge vide judgment dated 12.06.2020. Hence, this Writ Petition.

3. This matter was clubbed with a bundle of cases out of which many cases are at initial stage and service of the respondents in the said cases has not been affected. In some of the said cases, learned counsel appearing on behalf of the respondents have been taking adjournments or showed reluctance to advance arguments. Although all these cases

have been filed against a consolidated order but perusal of the record transpires that the facts and circumstances of each and every case are different. As these cases are pending since 2020 as such same cannot be left unattended for further period. Therefore, as the facts of these petitions are different, as such in the interest of justice, the cases wherein both the parties have advanced arguments, are being decided by this Court on merits.

4. Arguments heard and record perused.

5. Respondent No.1 claims to be owner of the suit land on the basis of registered sale deed No.17290 dated 12.12.1982. Conversely the defunct Pasban Co-operative Finance Corporation was also holding a registered sale deed No.11603 and mutation No.2536 as well as possession of the suit land. Thus the petitioner has sought report from the concerned revenue authority through its letter dated 25.05.2018. In response to the said letter Record Keeper Sub-Registrar, Data Gunj Bakhsh Town reported that sale deed of the respondent bearing No.17290, Bahi No.1, Volume No.1319 dated 12.12.1982 pertains to a D-Book record and the said area falls in the jurisdiction of Sub-Registrar Lahore Cantt whereas the impugned sale deed of respondent has allegedly been got registered with Sub-Registrar Data Ganj Bakhsh and certified copy of the sale deed seems to be issued on 19.12.2017 by the office of the latter Sub-Registrar which

is apparently a bogus copy. For ready reference letter dated 25.05.2018 and reply whereof is reproduced as under:-

عنوان بالا میں قلمی ہے قبل ازیں بھی مورخہ 29.4.2018 برائے حصول مصدقہ نقل رجسٹری متذکرہ درخواست دی گئی۔ جس پر کلرک سیف نے اعتراض کیا کہ اصل دستاویز چیک کروائیں۔ واقعات اس طرح ہیں کہ رجسٹری نمبر 17290 ہی نمبر 1 جلد نمبر 1319 مورخہ 12.12.1982 جو کہ پی سی بی ایل کی نظر میں جعلی بر مبنی فراڈ ہے۔ جس کی نقل سب رجسٹرار داتا گنج بخش ٹاؤن نے مورخہ 19.10.2017 کو جاری کی۔ یہ نقل رجسٹری محمد طیب ولد ظفر خان نے ملی بھگت سے تیار کروائی ہے جو کہ پی سی بی ایل کے خیال میں جعلی ہے۔ پی سی بی ایل اس رقبہ کا عرصہ دراز سے مالک و قابض ہے۔ اس رقبہ کو بذریعہ فراڈ حاصل کرنے کے لئے جعلی دستاویز محمد طیب وغیرہ نے تیار کروائی ہیں۔ (جعلی دستاویز کی کاپی لف ہذا ہے) دستاویز نمبر 17290 مورخہ 12.12.1982 کی تصدیق شدہ ہے جبکہ موضع کماہاں تحصیل کینٹ میں تھا اور سب رجسٹرار کینٹ ہی بیٹھتے تھے جبکہ رجسٹری پر سب رجسٹرار تحصیل سٹی درج ہے۔ جس سے عیاں ہے کہ یہ رجسٹری ملی بھگت سے تیار کی گئی ہے اور نقل حاصل کی گئی ہے۔

جناب عالی۔ گزارش ہے کہ درخواست عنوان بالا نمبری پی سی بی ایل پی۔ 5241 مورخہ 25.05.2018 بسلسلہ فراہم کیئے جانے نقل مصدقہ، دستاویز نمبری۔ 17290۔ ہی نمبر 1 جلد نمبر 1319 مورخہ 12.12.1982 ریکارڈ ملاحظہ کیا گیا۔

جلد نمبر 1319 ڈی بک ریکارڈ ہے۔ چٹھی مذکورہ کے ہمراہ لف شدہ نقل جو کہ 19.10.2017 دفتر سب رجسٹرار داتا گنج بخش ٹاؤن لاہور جاری ہونا ظاہر ہوتی ہے ایک فرضی اور جعلی نقل ہے یعنی ریکارڈ روم داتا گنج بخش ٹاؤن لاہور کی جاری شدہ نہ ہے۔ رپورٹ برائے مناسب احکام پیش خدمت ہے۔

(emphasis supplied)

6. Under Section 14 of the Punjab Undesirable Cooperative Societies (Dissolution) Act, 1993 [now The Punjab Undesirable Cooperative Societies (Repeal and Re-Organization) Act, 2025], any person having any claim against an undesirable Cooperative Society or any right over

any property or assets of such society or against its Directors, officers or agents, whether on the basis of any agreement, sale, transfer or otherwise may, within thirty days of the appointment of a Liquidator or within a reasonable time so allowed by the Cooperatives Judge, submit his claim before the Liquidator. For ready reference, Section 14 of the Act *ibid* is reproduced as under:-

“14. Claims against an undesirable Cooperative Society.— Any person having any claim against an undesirable Cooperative Society or any right over any property or assets of such society or against its Directors, officers or agents, whether on the basis of any agreement, sale, transfer or otherwise may, within thirty days of the appointment of a Liquidator or within a reasonable time allowed by the Cooperatives Judge, submit his claim before the Liquidator.”

7. Further, under Section 16 of the Act *ibid*, all suits or proceedings pending before any court or authority against an undesirable Cooperative Society in respect of its assets and liabilities shall stand abated on the appointment of the Liquidator. All decrees, judgements and orders passed by any court, except the Supreme Court, against an undesirable Cooperative Society or against properties and assets thereof on or after the first day of July 1990, shall be un-executable. For ready reference, Section 16 of the Act *ibid* is reproduced as under:-

“16. Abatement of all suits, proceedings, etc.— (1) All suits or proceedings pending before any court or authority against an undesirable Cooperative Society in respect of its assets and liabilities shall stand abated on the appointment of the Liquidator:

Provided that fresh proceedings against such a Society may be initiated before the Cooperatives Judge within sixty days of such abatement.

(2) All decrees, judgements and orders passed by any court, except the Supreme Court, against an undesirable Cooperative Society or against properties and assets thereof on or after the first day of July 1990, shall be unexecutable and of no legal effect, unless such judgement, decree or order is confirmed by the Cooperatives Judge after hearing the concerned parties.

(3) Any person who relies on such decrees, judgements or orders, may within sixty days of the appointment of the Liquidator, apply to the Cooperatives Judge for its confirmation.”

8. Section 17 of the Act *ibid* confers an exclusive jurisdiction to the Cooperative Judge which provision is reproduced as under:-

"17. Exclusive Jurisdiction of Cooperatives Judge.— Save as otherwise provided in this Act, no court shall have jurisdiction in respect of any matter which a Cooperatives Board and the Cooperatives Judge are empowered by or under this Act to determine and no injunction or process or order shall be granted by any court or authority in respect of any action taken or to be taken in exercise of any power conferred by or under this Act."

Further with regard to the jurisdictional discord, it is unequivocally maintained by the Hon'ble Cooperative Judge vide order dated 24.10.2018 passed in Cooperative Petition No.242986/2018, vide order dated 20.12.2018 rendered in Cooperative Petition No.258001 of 2018, as well as vide order dated 05.10.2018 passed in in Cooperative Petition No.86555/2017 that under Section 17 of the Act *ibid* civil court has no jurisdiction to adjudicate the matter. An alike controversy has already been resolved by the Hon'ble Supreme Court of Pakistan in its judgment cited as Muhammad Umar Mir &

Others Vs Dr. Muhammad Afzal Hussain & Others (PLJ

2016 SC 120) holding that any decree passed after 1st July 1990, that shall be nullity and inexecutable. The operative part of the above dictum is as under:-

“6. The above quoted provision clearly and unequivocally shows that any decree which is passed after 1st July, 1990 shall be a nullity in the eye of law. Yes a decree-holder could apply within 60 days of the appointment of Liquidator to the Cooperative Judge for its confirmation but there is nothing on the record to show that the petitioners ever applied to the Cooperative Judge or have ever urged it at any stage of the proceedings. Where a decree has become a nullity in the eye of law by the operation of law and the decree-holder did not apply to the competent forum for its confirmation as mentioned above, he is just a nonentity and thus cannot have a locus-standi or a cause of action to initiate any proceeding against the tenants of such property. The learned Judge of the High Court in its chambers rightly allowed the writ petition and set aside the judgments of the fora below. The view taken by the High Court being unexceptionable is not open to any interference.

9. Here, in this case, respondent No.1 filed a suit on 29.05.2015 before civil Court and on the basis of conceding statement of an unauthorized person the said suit was decreed on 25.07.2015 in complete contravention of the provision of Section 17 of the Act, 1993 which places a stringent bar upon the jurisdiction of civil Court to adjudicate the matter and if any determination is made by the said Court that will be nullity in the eyes of law. Moreover, under Section 16 of the Act *ibid* such void decree / order is inexecutable as settled by the Hon’ble Supreme Court of Pakistan in a case titled as *Muhammad Umar Mir* (supra).

10. Further Section 3 of the Act ibid embodied with overriding effect that it is a special law and the provisions of this Act shall have effect notwithstanding anything contained in any other law for the time being in force, or in any judgement or decision. For ready reference, section 3 of the Act 1993 is reproduced as under:-

“3. Act to override other laws, etc.— The provisions of this Act shall have effect notwithstanding anything contained in any other law for the time being in force, or in any judgement or decision of any court or in any agreement, contract or instrument.”

11. Furthermore, the Punjab Undesirable Cooperative Societies (Dissolution) Act, 1993 has been repealed through the Punjab Undesirable Cooperative Societies (Repeal and Re-Organization) Act, 2025 whereby under Section 18, an exclusive jurisdiction in respect of matters of the PCBL has been granted to Liquidation Tribunal established under Section 4 of the Act, 2025. Further, under Section 16 of the Act, 2025, remedy of revision is provided. For ready reference, Sections 4, 16 and 18 of the Act, 2025 are reproduced as under:

“4. Liquidation Tribunal.- (1) The Government shall, by a notification to be published in the official Gazette, establish a Liquidation Tribunal to be known as the Undesirable Cooperative Societies Liquidation Tribunal which shall exercise its jurisdiction under the Act.

(2) The Liquidation Tribunal shall consist of a Chairperson and two members to be appointed by the Government on such terms and conditions as may be determined by it.

(3) No person shall be appointed as a Chairperson of the Liquidation Tribunal unless he:

(a) has been a judge of the Lahore High Court and recommended by the Chief Justice Lahore, High Court; or

(b) has been a civil servant of not less than BS-21 and worked as Member of the Board.

(4) No person shall be appointed as member of the Liquidation Tribunal unless he:

(a) is or has been a civil servant in BS-20 or above; and

(b) has such experience in legal and revenue matters as may be prescribed by the Board.

(5) The principal seat of the Liquidation Tribunal shall be at Lahore; however, the Liquidation Tribunal may hold its sittings at such other places as it may deem fit.

(6) No act or proceedings of the Liquidation Tribunal shall be invalid by reason only of the existence of a vacancy in, or defect in its establishment.

(7) The Chairperson and members of the Liquidation Tribunal shall hold office for a non-extendable period of two years but they shall serve during the pleasure of the Government.

(8) In exercise of its jurisdiction, the Liquidation Tribunal shall have the same powers of a civil court under the Code of Civil Procedure, 1908 (V of 1908).

(9) In all matters with respect to which no procedure has been provided for in the Act, the Liquidation Tribunal shall follow the procedure laid down in the Code of Civil Procedure, 1908 (V of 1908).

(10) The Liquidation Tribunal shall hear and decide all matters including revisions filed before it, within a period of one hundred and twenty days without exception and shall refuse all requests for adjournment if sought by any party to the proceedings if such adjournment makes the Liquidation Tribunal unable to decide a case within the stipulated period.

...

16. Revision.- Any person, aggrieved by a final decision of the Liquidation Committee, may, within fifteen days from the date of such final decision, file the revision petition, against such decision, before the Liquidation Tribunal which may, within one hundred and twenty days of its filing, confirm, reverse, or modify such decision and make such order as it may deem just in the circumstances of the case and the decision of the Liquidation Tribunal made thereon shall be final.

...

18. Exclusive jurisdiction of Liquidation Tribunal.- Save as otherwise provided in the Act, no court shall have jurisdiction in respect of any matter to which the Board or the Liquidation Tribunal is empowered by or under the Act to determine and no injunction shall be granted by any court or

authority in respect of any action taken or to be taken in exercise of any power conferred by or under the Act.”

12. As per Article 175(2) of the Constitution of Islamic Republic of Pakistan, 1973, “no court shall have any jurisdiction save as is or may be conferred on it by the Constitution or by or under any law”. The Hon’ble Supreme Court of Pakistan in a case titled as S.M.Waseem Ashraf Vs Federation of Pakistan through Secretary, M/O Housing and Works, Islamabad & Others (2013 SCMR 338) has held as under:-

“6.....In this context, it may be mentioned that according to Article 175(2) of the Constitution of the Islamic Republic of Pakistan, 1973 "No Court shall have any jurisdiction save as is or may be conferred on it by the Constitution or by or under any law". From the above quoted language of this Sub-Article, it is unambiguously clear that a bar, and a prohibition has been placed that "No" Court in Pakistan shall exercise any jurisdiction in any matter brought before it until and unless, such jurisdiction has been conferred upon it by the Constitution itself or under any law. The word "save" appearing in the Sub-Article has clear connotation of the word "except" for the purpose of construing the above. meaning thereby that "No" Court shall have the jurisdiction except as has been conferred upon it by the Constitution and/or law.

.....
7.....Before parting, it may be observed that any forum or Court, which has no jurisdiction to decide the main matter on a case before it, has no jurisdiction to decide any ancillary and/or incidental matter thereto.

In a case title The Province of Punjab & Another Vs National Industrial Cooperative Credit Corporation & Another (2000 SCMR 567) declared the Act as valid.

13. It is settled law that when law requires an act or thing to be done in a particular manner, it has to be done in prescribed manner alone otherwise the very act would be termed as illegal or void and dictates of law could not be

termed as mere a technicality. Reliance may respectfully be placed on the case titled as “Government of the Punjab, Food Department through Secretary Food & Another Vs. Messrs United Sugar Mills Limited & Another” (2008 SCMR 1148.

14. This petition has arisen out of the consolidated judgment dated 12.06.2020 whereas some of the connected cases, which have arisen out of the said judgment, have not been fixed today or in some cases counsel for the respondents is not available. As this is an old matter pertaining to year 2020 and learned counsel for the parties in this petition are available and have argued the case as such it is being decided as per its own merits.

15. Resultantly, this Writ Petition is **allowed**, the judgment dated 12.06.2020 passed by the learned the Cooperative Judge is set aside and consequently, the Cooperative Petition filed by the petitioner is accepted.

(Syed Ahsan Raza Kazmi)
Judge

(Ch. Muhammad Iqbal)
Judge

Shahzad Mahmood

Announced in open Court on 30.04.2026.

Approved for reporting.

Judge

Judge